

Background

Plaintiff filed, on 12/15/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to Defendant's counsel of record.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement, filed 12/15/25, where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$3,220.78, less any credits for payments received, plus court costs.

Court costs were \$296.02.

Total balance, after credits, is \$3,216.80.

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$3,216.80.

Plaintiff to file order on Motion, as well as submit Judgment.

4. 9:00 AM CASE NUMBER: L24-10336

CASE NAME: DISCOVER BANK VS. LAVON BRITT, JR.

***HEARING ON MOTION IN RE:**

FILED BY: DISCOVER BANK

TENTATIVE RULING:

Background

Plaintiff filed, on 12/12/25, a motion to enter judgment pursuant to stipulation. The motion was served by mail to the address where Plaintiff had personally served the Defendant with a copy of the Complaint in this matter.

The Motion is unopposed.

Analysis

The parties entered into a CCP 664.6 agreement where the Defendant was to follow a particular fee payment schedule. If Defendant failed to abide by the payment schedule, then the agreement called for judgment to be entered in the amount of \$4,289.28, plus

court costs, and less any credits for payments received.

Defendant made total payments in the amount of \$900; Court costs are \$296.02. Thus, the judgment amount should be \$3,685.30.

The Stipulation was filed on 12/12/25.

Disposition

Plaintiff's Motion is granted.

Plaintiff to file order on Motion, as well as submit Judgment.

5. 9:00 AM CASE NUMBER: L25-01552
CASE NAME: WELLS FARGO BANK, N.A. VS. BRYAN MANUEL
*HEARING ON MOTION IN RE: SUMMARY JUDGMENT
FILED BY:

TENTATIVE RULING:

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail service on counsel of record.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of*